

Troy Davis: Innocence and Execution; If This is a Man

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The Troy Davis case, perhaps the most controversial of all death penalty impositions in the United States, is growing perilously close to a climax resulting in the death of a man who, even if not innocent, has been subject to a deeply flawed legal process. An execution date has been set for the 21st of September.



Troy_Davis_Paris_demo

I do not believe the death penalty is justified under any circumstances, but to make some conciliation, in this case **seven of the nine** prosecution eyewitnesses retracted their testimony. There is **no physical evidence** linking Davis to the scene of the crime. If this evidence had been presented at original trial, conviction would have been highly unlikely. The Supreme Court appeal set an impossibly high burden on Davis to "prove his innocence", rather than the other way around, which is how trial should work.

In 2007 I wrote to Davis and he replied with courtesy, grace and (although it's not my cup of tea) religious feeling. This is a human being who seems, in my mind, to be the clear victim of circumstances and will pay dearly. Humans should not decide whether other humans are worthy of living; that way leads only back to the horrors of the death camp. I do not believe that anybody has the right to give the "yes or no", in Primo Levi's terms:

*You who live safe
In your warm houses,
You who find, returning in the evening,
Hot food and friendly faces:
Consider if this is a man
Who works in the mud
Who does not know peace
Who fights for a scrap of bread
Who dies because of a yes or no.
Consider if this is a woman,
Without hair and without name
With no more strength to remember,
Her eyes empty and her womb cold
Like a frog in winter.
Meditate that this came about:
I commend these words to you.
Carve them in your hearts
At home, in the street,
Going to bed, rising;
Repeat them to your children,
Or may your house fall apart,
May illness impede you,
May your children turn their faces from you.*

Take [action](#) now. Sign the [Amnesty petition](#). It's not every day that you can save a man's life, regardless of who that man is. Today is that day.

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